

(Showing 89 passages containing 'basic structure' / 'basic feature')

[~Line 306]

provisions or the preamble.

36. Later, he observed:

Above all, it formulated a solemn and dignified preamble which appears to be an epitome of the basic features of the Constitution. Can it not be said that these are indica of the intention of the Constituent Assembly to give a permanency to the basic features of the Constitution ?

37. He posed a further question by observing:

It is also a matter for consideration whether making a change in a basic

[~Line 308]

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37. He posed a further question by observing:

It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter,

[~Line 319]

the provisions of Article 368 confer power on Parliament to amend the Constitution, it will still have to be considered whether as long as the preamble stands unamended, that power can be exercised with respect to any of the basic features of the Constitution.

To illustrate my point, as long as the words "sovereign democratic republic" are there, could the Constitution be amended so as to depart from the democratic form of Government or its republic character? If that cannot be done, then, as long as the words "Justice, social, economic and

[~Line 452]

the policies of Part IV.

(6) The Preamble cannot control the unambiguous language of the articles of the Constitution.

50. Regarding the amendment of the basic features of the Constitution, he observed:

Counsel said that they could not give an exhaustive catalogue of the basic features, but sovereignty, the republican form of government, the federal structure and the fundamental rights were some of the features. The Seventeenth Amendment has not derogated from the sovereignty, the

[~Line 3017]

essential; otherwise it would not have been put in the Constitution. This is true. But this

does not place every provision of the Constitution in the same position. The true position

is that every provision of the Constitution can be amended provided in the result the basic

foundation and structure of the Constitution remains the same. The basic structure may be

said to consist of the following features:

- (1) Supremacy of the Constitution;
- (2) Republican and Democratic form of Government.
- (3) Secular character of the Constitution;

[~Line 3028]

317. The above structure is built on the basic foundation, i.e., the dignity and freedom of the individual. This is of supreme importance. This cannot by any form of amendment be destroyed.

318. The above foundation and the above basic features are easily discernible not only from the preamble but the whole scheme of the Constitution, which I have already discussed.

319. In connection with the question of abrogation of fundamental rights, Mr. Seervai boldly asserted that there was no such thing as natural or inalienable rights because the

[~Line 3336]

343. If Parliament has power to pass the impugned amendment acts, there is no doubt that I have no right to question the wisdom of the policy of Parliament. But if the net result of my interpretation is to prevent Parliament from abrogating the fundamental rights, and the basic features outlined above, I am unable to appreciate that any uncertainty, friction or confusion will necessarily result.

344. He also drew our attention to the following observations of Hegde, J. in Budhan

Singh v. Nabi Bux [1970] 2 S.C.R. 10; 15-16:

Before considering the meaning of the word "held", it is necessary to

[~Line 3425]

Parliament.

353. I may before referring to the decisions of the Supreme Court of the United States say that that court has hitherto not been confronted with the question posed before us : Can Parliament in exercise of its powers under Article 368 abrogate essential basic features and one fundamental right after another including freedom of speech, freedom of religion, freedom of life ? The American decisions would have been of assistance if this fundamental question had arisen there and if the power to amend the Federal Constitution had been with two third majority of the Congress.

[~Line 3469]

hold the 18th Amendment valid if it had been enacted by our Parliament and added to our Constitution, for I would discern no such taking away of Fundamental rights or altering

the basic structure of the Constitution as would place it outside the contours of the Preamble and the basic features of the Constitution. 360. United States of America v. William H. Sorague (75) L. Ed. 640 was concerned with the validity of the 18th Amendment. The District Court had held 44 F. (2d) 967 that the 18th Amendment had not been properly ratified so as to become part of the Constitution.

[~Line 3470]

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[~Line 5336]

(iii) The proviso uses the words "if such amendment seeks to make any change in". It does not use the words "change of" or "change" simpliciter. (iv) The provisions of the Constitution mentioned in the proviso do not show that the basic structure of the Constitution can be changed if the procedure laid down therein is followed. For instance, Clause (a) in the proviso refers to Articles 54 and 55 which relate to the election of the President. It is noteworthy that Article 52 which provides that there shall be a President of India and Article 53 which vests the power of the Union

[~Line 5476]

basis of administration to be found in the two Schedules. (iii) the wide language used in paras 7 and 21 of the two Schedules was meant for the purpose that at a proper time in the future or whenever considered necessary the entire basic structure of the Schedules could be repealed and the areas and tribes covered by them could be governed and administered like the rest of India. (iv) the use of the word "amendment" simpliciter in Article 368 must have a narrower meaning than the composite expression "amend" or

[~Line 5558]

being considered from the standpoint of the basic philosophy underlying the Constitution but subject to its essential features. (ii) to make changes which may not tall within (i) but which do not alter or destroy any of the basic features, essential elements or fundamental principles of the Constitution. (iii) to make any change whatsoever including changes falling outside (ii). He claims that the preferable meaning is that which is contained in (i) but what is stated

in (ii) is also a possible construction. Category (iii) should be ruled out altogether.

[~Line 6453]

was being taken with regard to the meaning of the word "law" in Article 13(2). But it was recognised that the argument had considerable force. Wanchoo J. (as he then was) considered the question of implied limitations at some length but felt that if any implied limitation that basic features of the Constitution cannot be changed or altered, were to be put on the power of amendment, the result would be that every amendment made in the Consitution would involve legal wrangle. On the clear words of Article 368 it was not possible to infer any implied limitation on the power of amendment Hidayatullah J., (later Chief Justice) discussed the question of implied limitations and referred to the spate of

[~Line 7339]

Das C.J. in Kerala Education Bill case paints the true picture in which there must be harmony between Parts III and IV; indeed the picture will get distorted and blurred if any vital provision out of them is cut out or denuded of its identity. 620. The basic structure of the Constitution is not a vague concept and the apprehensions expressed on behalf of the respondents that neither the citizen nor the Parliament would

[~Line 7771]

(b) though the power to amend cannot be narrowly construed and extends to all the Articles it is not unlimited so as to include the power to abrogate or change the identity of the Constitution or its basic features;
(c) even if the amending power includes the power to amend Article 13(2), a question not decided in Golak Nath, the power is not so wide so as to include the power to abrogate or take away the fundamental freedoms; and

[~Line 8368]

Palkhivala urged that the word "amendment" or "amend" ordinarily means â™to make certain changes or effect some improvements in a textâ™. Those words do not, according to him, except under special circumstances mean the widest power to make any and every change in a document, including a power to abrogate or repeal the basic features of that document. The same, he contended, is true of a power to amend a statute or a Constitution. In support of his contention, he invited our attention to the various meanings given to the word "amendment" or "amend" in several dictionaries. He further urged that in construing the meaning of the word "amendment" in Article 368, we must

[~Line 8497]

Constitution and further require the members of the Union Judiciary and of the Higher judiciary in the States, to uphold the Constitution. Above all, it formulated a solemn and dignified preamble which appears to be an epitome of the basic features of the Constitution. Can it not be said that these are indicia of the intention of the Constituent Assembly to give a premanency to the basic features of the Constitution ?
It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or

[~Line 8499]

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It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter, would it be within the purview of Article 368 ?

[~Line 8512]

very wide power but it may not include a power to abrogate the Constitution. He did explain what he meant by "abrogate the Constitution". Hidayatullah J. (as he

then was)
did not address himself to that question. Bachawat J. side-stepped that question by saying
that the impugned amendments did not destroy any, basic feature of the Constitution, The
only judge who rejected the contention that there are inherent or implied limitations on
the amending power was Ramaswami J. >From the above discussion it is seen that in
cases that came up for consideration before this Court in the past several judges did
consider the possibility of having some limitation on the amending power under Article

[~Line 8702]

â™the Constitutionâ™ which means the original Constitution. When we speak of the
â™abrogationâ™ or â™repealâ™ of the Constitution, we do not refer to any form but to substance.
If
one or more of the basic features of the Constitution are taken away to that extent the
Constitution is abrogated or repealed. If all the basic features of the Constitution are
repealed and some other provisions inconsistent with those features are incorporated, it
cannot still remain the Constitution referred to in Article 368. The personality of the
Constitution must remain unchanged.

[~Line 8703]

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cannot still remain the Constitution referred to in Article 368. The personality of the
Constitution must remain unchanged.
691. It is also necessary to bear in mind that the power to amend the Constitution is

[~Line 8748]

and defend the Constitution" or does his oath merely mean that he is to defend the
amending power of Parliament ? Can the amending power of Parliament be considered as
the Constitution? The whole scheme and the structure of our Constitution proceeds on the
basis that there are certain basic features which are expected to be permanent.
694. Implied limitations on the powers conferred under a statute constitute a general

[~Line 9928]

763. It cannot be said that Article 31C is similar to Articles 4, 169, Paragraph 7 of Schedule V and Paragraph 21 of Schedule VI. Each one of those Articles makes it clear that the laws passed under those Articles are not to be deemed to be an amendment of the Constitution for the purpose of Article 368. Those laws cannot affect the basic features of the Constitution. They operate within narrow fields.
764. The learned Advocate-General of Maharashtra contended that Article 31C lifts the ban placed on the State Legislatures and Parliament under Articles 14, 19 and 31. It is true that there are several provisions in the Constitution which lift the ban placed by one

[~Line 10100]

evidently of the opinion that the sovereignty of the country, the democratic character of the polity, and the individual liberties etc. would be better safeguarded if the amending power is exclusively left in the hands of the Parliament. This exclusive conferment of amending power on the Parliament is one of the basic features of the Constitution and the same cannot be violated directly or indirectly. Article 31A made a small dent on this feature and that went unnoticed. That provision is now protected by the principle of stare decisis. Public interest will suffer if we go back on these decisions and take away the protection given to many statutes. Now, to use the words of Lord Atkin in the Proprietary

[~Line 10175]

power of the executives as well as of the legislatures, must be so exercised as to give no room for legitimate complaint, that it was exercised with an evil eye or an uneven hand.
778. For the reasons mentioned above, we hold that Article 31C permits the destruction of some of the basic features of our Constitution and consequently, it is void.
779. Lastly, we come to the validity of the 29th Amendment Act, 1972. Contentions relating to the 29th Amendment Act of the Constitution lie within narrower limits. The only plea taken was that if any of the provisions in the two Acts included in the IXth Schedule to the Constitution by means of the 29th Amendment Act does not satisfy the

[~Line 11956]

democratic nor republic and where the basic human rights are conspicuous by their absence.

918. Mr. Palkhivala submits that the principle of inherent or implied limitations on power to amend the controlled Constitution stems from three basic features. First, the ultimate legal sovereignty resides in the people. Second, Parliament is only a creature of the Constitution. Third, power to amend the Constitution or destroy the essential features of the Constitution is an application of ultimate legal sovereignty.

919. Mr. Palkhivala enumerated 12 essential features. These were as follows :
(1) The

[~Line 12049]

Constitutions.

926. The theory of inherent and implied limitations on the amending power is based on the assumption of a narrow and restricted meaning of the word amendment to suggest that the basic features or the essential features and the democratic republican character of the Constitution cannot be damaged and destroyed. Emphasis is laid on the Preamble of the Constitution to suggest that inherent and implied limitations all spring from the Preamble. The Preamble is said not to be a part of the Constitution. The Preamble is said to be unalterable. Therefore, it is contended that other provisions which gave effect to the

[~Line 14978]

bill, as I said earlier, there may be a partisan and heated debate, which often times may not throw any light on the issues which come before the Court but the proceedings in a Constituent Assembly have no such partisan nuances and their only concern is to give the nation a working instrument with its basic structure and human values sufficiently balanced and stable enough to allow an interplay of forces which will subserve the needs of future generations. The highest Court created under it and charged with the duty of understanding and expounding it, should not, if it has to catch the objectives of the framers, deny itself the benefit of the guidance derivable from the records of the

[~Line 15243]

essential feature.

1142. The question whether there are any implied limitations on the power to amend under Article 368 or whether an amendment under that Article can damage or destroy the basic features of the Constitution would depend, as I said earlier, on the meaning of the

word "amendment" before the Twenty-Fourth Amendment. If that word has a limited meaning, which is the case of the petitioner, it is contended that that power of amendment could not be enlarged by the use of the words "amend by way of addition, variation and repeal".

[~Line 15288]

1145. Wanchoo, J., rejected the doctrine of implied limitations though he was doubtful if the Constitution can be abrogated or another new Constitution can be substituted, (see p. 838). At p. 836 he said, "We have given careful consideration to the argument that certain basic features of our Constitution cannot be amended under Article 368 and have come to the conclusion that no limitations can be and should be implied upon the power of amendment under Article 368.... We fail to see why if there was any intention to make any part of the Constitution unamendable, the Constituent Assembly failed to include it expressly in Article 368...on the clear words of Article 368 which provides for

[~Line 15300]

result being that the Bill altogether, falls, for there is no specific provision for anythin
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further to be done about the Bill in Article 368 as there is in Article 111".
1146. Bachawat, J., noticed the argument on the basic features but did not express any opinion because he said "it is sufficient to say that the fundamental rights are within the reach of the amending power". Ramaswami, J., on the other hand rejected the thesis of implied limitations, because Article 368 does not expressly say so. He said at p. 933: "If the Constitution-makers considered that there were certain basic features of the

[~Line 15304]

opinion because he said "it is sufficient to say that the fundamental rights are within the reach of the amending power". Ramaswami, J., on the other hand rejected the thesis of implied limitations, because Article 368 does not expressly say so. He said at p. 933: "If the Constitution-makers considered that there were certain basic features of the Constitution which were permanent it is most unlikely that they should not have expressly said in Article 368 that these basic features were not amendable".
1147. During the course of the lengthy arguments on behalf of the petitioners and the respondents, we have been taken on a global survey of the Constitutions of the various

[~Line 15306]

implied limitations, because Article 368 does not expressly say so. He said at

p. 933: "If the Constitution-makers considered that there were certain basic features of the Constitution which were permanent it is most unlikely that they should not have expressly said in Article 368 that these basic features were not amendable". 1147. During the course of the lengthy arguments on behalf of the petitioners and the respondents, we have been taken on a global survey of the Constitutions of the various countries. In support of the rival contentions, there were cited before us innumerable decisions of the Supreme Court and the State Courts of the United States of America, and

[~Line 15994]
350; 64 L. ed. 947, 960, 978). The decision totally negated the contention that an amendment must be confined in its scope to an alteration or improvement of that which is already contained in the Constitution and cannot change its basic structure, include new grants of power to the Federal Government nor relinquish in the State those which already have been granted to it. (See Cooley on Constitutional Law, Chapter III, Article V, pp. 46 & 47). 1180. I find from the reference to the National Prohibition case and the pages of that

[~Line 16097]
a case, "it would be right to hold that Article 52 could not be altered by Parliament to abolish the office of President...it will require ratification". Nor do I think having regard to the basic structure of the Constitution is it possible to abolish the office of the President by resort to Article 368 and as assent is necessary, no President true to his oath to protect and defend the Constitution, will efface himself. It would, therefore, appear from this specific instance that an implied limitation is read into Article 368 by reason of the proviso entrenching Article 54. The learned Advocate-General says even Article 53

[~Line 16378]
amendment in Article 368 cannot be enlarged by amending the amending power under proviso (e) to Article 368. 1198. What follows from this conclusion is the next question to be considered. It is submitted that an amendment should not alter the basic structure of the Constitution or be repugnant to the objectives set out in the Preamble and cannot be exercised to make the Constitution unidentifiable by altering its basic concept governing the democratic way of life accepted by the people of this country. If the entire Constitution cannot be abrogated, can all the provisions of the Constitution leaving the Preamble, or one article, or a few

[~Line 16583]

mechanism, or call it an organism or a piece of Constitutional engineering, whichever it is, it must have a structure, or a composition or a base or foundation. What it is can only be ascertained, if we examine the provisions which the Honâ™ble Chief Justice has done in great detail after which he has instanced the features which constitute the basic structure. I do not intend to cover the same field once again. There is nothing vague or unascertainable in the preamble and if what is stated therein is subject to this criticism it would be equally true of what is stated in Article 39(b) and (c) as these are also

[~Line 16621]

the essential features or the basic elements comprising the structure of our Constitution need not be considered in detail as these will fall for consideration in any concrete case where they are said to have been abrogated and made non-existent. The fact that a complete list of these essential elements constituting the basic structure are not enumerated, is no ground for denying that these exist. Are all the elements which make a law void and unConstitutional ever required to be concatenated for the recognition of the validity or invalidity of laws judged on the anvil of the Constitution? A sovereign democratic republic, Parliamentary democracy, the three organs of the State, certainly in

[~Line 16626]

law void and unConstitutional ever required to be concatenated for the recognition of the validity or invalidity of laws judged on the anvil of the Constitution? A sovereign democratic republic, Parliamentary democracy, the three organs of the State, certainly in my view constitute the basic structure. But do the fundamental rights in Part III and Directive Principles in Part IV constitute the essential element of the basic structure of our Constitution in that the Constitution will be the Constitution without them ? In other words, if Parts III and IV or either of them are totally abrogated, can it be said that the structure of the Constitution as an organic instrument establishing sovereign democratic

[~Line 16627]

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[~Line 16722]
Constitution itself. When Clause 4 of Article 32 does not even permit suspension of the right under Article 32 except as otherwise provided in the Constitution, that is, by Article 359, it is highly unthinkable that by an amendment this right could be abrogated. This pivotal feature of the Fundamental Rights demonstrates that this basic structure cannot be damaged or destroyed. When a remedy cannot be abrogated, it should follow that the fundamental rights cannot be abrogated for the reason that the existence of a remedy would be meaningless without the rights. There is nothing else in the debates which would suggest that any of the members ever entertained any notion of abrogation of any

[~Line 16798]
rights, and though the power of amendment under Article 368 is wide, it is not wide enough to totally abrogate or what would amount to an abrogation or emasculating or destroying in a way as would amount to abrogation of any of the fundamental rights or other essential elements of the basic structure of the Constitution and destroy its identity .
Within these limits, Parliament can amend every article. In this view of the scope of the amending power in Article 368, I hold the Twenty-fourth Amendment valid, for it has the same amending power as it existed before the amendment.

[~Line 17397]
the legislative power conferred on the respective legislative organ under the VII Schedule to the Constitution.
1230. If Parliament by an amendment of the Constitution under Article 368, cannot abrogate, damage or destroy the basic structure of the Constitution or any of the essential elements comprising that basic structure, or run counter to defeat the objectives of the Constitution declared in the Preamble and if each and every fundamental right is

an
essential feature of the Constitution, the question that may have to be
considered is
whether the amendment by the addition of Article 31C as a fundamental right in
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[~Line 17398]
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an
essential feature of the Constitution, the question that may have to be
considered is
whether the amendment by the addition of Article 31C as a fundamental right in
Part III
of the Constitution has abrogated, damaged or destroyed any of the fundamental
rights.

[~Line 18072]
1260. The word "amendment" in Article 368 does not include repeal.
Parliament could
amend Article 368 and Article 13 and also all the fundamental rights and though
the
power of amendment is wide, it is not wide enough to totally abrogate or
emasculate or
damage any of the fundamental rights or the essential elements in the basic
structure of
the Constitution or of destroying the identity of the Constitution. Within these
limits,
Parliament can amend every article of the Constitution. Parliament cannot under
Article
368 expand its power of amendment so as to confer on itself the power to repeal,
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[~Line 18077]
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destroying the
identity of the Constitution, and on the construction placed by me, the Twenty-
fourth
Amendment is valid, for it has not changed the nature and scope of the amending
power
as it existed before the Amendment.
Twenty-fifth Amendment:

[~Line 20795]

on the fundamental principles of dual sovereignty, but the contention was overruled. The decision totally negated the contention that "An amendment must be confined in its scope to an alteration or improvement of that which is already contained in the Constitution and cannot change its basic structure, include new grants of power to the Federal Government, nor relinquish to the State those which already have been granted to it." Quick and Carran writing in the "Annotated Constitution of the Australian Commonwealth" (1901) observe as follows at p. 989 with regard to the amending clause of the Constitution namely Section 128. "It may be concluded that there is no limit to the

[~Line 21550]

word "guaranteed" in Article 32 cannot lift the fundamental rights above the Constitution itself.

(iii) There is no room for an implication in the construction of Article 368. If the Constitution makers wanted certain basic features to be unamendable they would have said so.

(iv) It cannot be assumed that the Constitution makers intended to forge a political strait-jacket for generations to come. Today at a time when

[~Line 21562]

Page 308 of 502

absolutes are discredited, it must not be too readily assumed that there are basic features of the Constitution which shackle the amending power and which take precedence over the general welfare of the nation and the need for agrarian and social reform.

(v) If the fundamental rights are unamendable and if Article 368 does not include any such power it follows that the amendment of, say Article 31

[~Line 23215]

though it has been subjected to alterations. As a result of the amendment, the old

Constitution cannot be destroyed and done away with; it is retained though in the amended form. What then is meant by the retention of the old Constitution? It means the

retention of the basic structure or framework of the old Constitution. A mere retention of

some provisions of the old Constitution even though the basic structure or framework of

the Constitution has been destroyed would not amount to the retention of the old Constitution. Although it is permissible under the power of amendment to effect changes,

"however important, and to adapt the system to the requirements of changing

[~Line 23216]

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retention of the basic structure or framework of the old Constitution. A mere retention of some provisions of the old Constitution even though the basic structure or framework of the Constitution has been destroyed would not amount to the retention of the old Constitution. Although it is permissible under the power of amendment to effect changes, "howsoever important, and to adapt the system to the requirements of changing conditions, it is not permissible to touch the foundation or to alter the basic institutional

[~Line 23223]

conditions, it is not permissible to touch the foundation or to alter the basic institutional pattern. The words "amendment of the Constitution" with all their wide sweep and amplitude cannot have the effect of destroying or abrogating the basic structure or framework of the Constitution. It would not be competent under the garb of amendment, for instance, to change the democratic government into dictatorship or hereditary monarchy nor would it be permissible to abolish the Lok Sabha and the Rajya Sabha. The secular character of the state according to which the state shall not discriminate against

[~Line 23247]

ill not fight against, when we want to change it." It is, therefore, plain that what Pt. Nehru contemplated by amendment was the varying of the Constitution "here and there" and not the elimination of its basic structure for that would necessarily result in the Constitution

[~Line 23258]

losing its identity.
1483. Reference to some authorities in the United States so far as the question is concerned as to whether the power to amend under Article 5 of US Constitution would include within itself the power to alter the basic structure of the Constitution are not helpful because there has been no amendment of such a character in the United States. No doubt the Constitution of the United States had in reality, though not in form, changed a good deal since the beginning of last century; but the change had been effected far less by formally enacted Constitutional amendments than by the growth of customs or

[~Line 23273]

what is the minimum of the existing Constitution which should be left intact in order to hold that the existing Constitution has been retained in an amended form and not done away with. In my opinion, the minimum required is that which relates to the basic structure or framework of the Constitution. If the basic structure is retained, the old Constitution would be considered to continue even though other provisions have undergone change. On the contrary, if the basic structure is changed, mere retention of some articles of the existing Constitution would not warrant a conclusion that the existing Constitution continues and survives.

[~Line 23275]

away with. In my opinion, the minimum required is that which relates to the basic structure or framework of the Constitution. If the basic structure is retained, the old Constitution would be considered to continue even though other provisions have undergone change. On the contrary, if the basic structure is changed, mere retention of some articles of the existing Constitution would not warrant a conclusion that the existing Constitution continues and survives.
1485. Although there are some observations in "Limitations of Amendment Procedure and the Constituent Power" by Conrad to which it is not possible to subscribe, the

[~Line 23316]

original in form, is treated as amendatory.
1487. It is, no doubt, true that the effect of the above conclusion at which I have arrived

is that there would be no provision in the Constitution giving authority for drafting a new and radically different Constitution with different basic structure or framework. This fact, in my opinion, would not show that our Constitution has a lacuna and is not a perfect or a

[~Line 23330]

Constitution. The people in the final analysis are the ultimate sovereign and if they decide to have an entirely new Constitution, they would not need the authority of the existing Constitution for this purpose.
1488. Subject to the retention of the basic structure or framework of the Constitution, I have no doubt that the power of amendment is plenary and would include within itself the power to add, alter or repeal the various articles including those relating to fundamental rights. During the course of years after the Constitution comes into force, difficulties can be experienced in the working of the Constitution. It is to overcome those difficulties that

[~Line 24066]

significance. (see p. 310).
1516. It is then argued on behalf of the petitioners that essential features of the Constitution cannot be changed as a result of amendment. So far as the expression "essential features" means the basic structure or framework of the Constitution, I have already dealt with the question as to whether the power to amend the Constitution would include within itself the power to change the basic structure or framework of the Constitution. Apart from that, all provisions of the Constitution are subject to amendatory process and cannot claim exemption from that process by being described essential

[~Line 24068]

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1517. Distinction has been made on behalf of the petitioners between a fundamental right

[~Line 24280]

that Preamble should come into force on November 26, 1949 but the said proposal

was

rejected.

1526. As Preamble is a part of the Constitution, its provisions other than those relating to

basic structure or framework, it may well be argued, are as much subject to the amendatory process contained in Article 368 as other parts of the Constitution.

Further, if

Preamble itself is amendable, its provisions other than those relating to basic structure

cannot impose any implied limitations on the power of amendment. The argument that

Preamble creates implied limitations on the power of amendment cannot be accepted

[~Line 24282]

1526. As Preamble is a part of the Constitution, its provisions other than those relating to

basic structure or framework, it may well be argued, are as much subject to the amendatory process contained in Article 368 as other parts of the Constitution.

Further, if

Preamble itself is amendable, its provisions other than those relating to basic structure

cannot impose any implied limitations on the power of amendment. The argument that

Preamble creates implied limitations on the power of amendment cannot be accepted

unless it is shown that the Parliament in compliance with the provisions of Article 368 is

debarred from amending the Preamble in so far as it relates to matters other than basic

[~Line 24623]

felt necessary to do so for changing the economic structure and to attain the objectives

contained in the Directive Principles.

1539. So far as the question is concerned as to whether the right to property can be said to

pertain to basic structure or framework of the Constitution, the answer, in my opinion,

should plainly be in the negative. Basic structure or framework indicates the broad

outlines of the Constitution, while the right to property is a matter of detail.

It is appar

ent

from what has been discussed above that the approach of the framers of the Constitution

[~Line 24624]

contained in the Directive Principles.

1539. So far as the question is concerned as to whether the right to property can be said to

pertain to basic structure or framework of the Constitution, the answer, in my opinion,

should plainly be in the negative. Basic structure or framework indicates the broad

outlines of the Constitution, while the right to property is a matter of detail.

It is appar

ent

from what has been discussed above that the approach of the framers of the Constitution was to subordinate the individual right to property to the social good. Property right has

[~Line 25245]

Constitution so as to take away or abridge the fundamental rights cannot be accepted to be correct. Fundamental rights contained in Part III of our Constitution can, in my opinion, be abridged or taken away in compliance with the procedure prescribed by Article 368, as long the basic structure of the Constitution remains unaffected. 1569. We may now deal with the Twentyfourth Amendment. It has sought to make clear matters regarding which doubt had arisen and conflicting views had been expressed by this Court. We may in this context set forth the Statement of Objects and Reasons of the Constitution (Twentyfourth Amendment) Bill. The Statement of Objects and Reasons

[~Line 26068]

for that object and prevents a court from going into the question as to whether the law enacted is really for that object. The exclusion by the Legislature, including a State Legislature, of even that limited judicial review strikes at the basic structure of the Constitution. The second part of Article 31C goes beyond the permissible limit of what constitutes amendment under Article 368. The second part of Article 31C can be severed from the remaining part of Article 31C and its invalidity would not affect the validity of the remaining part. I would, therefore,

[~Line 26151]

(vii) The power of amendment under Article 368 does not include power to abrogate the Constitution nor does it include the power to alter the basic structure or framework of the Constitution. Subject to the retention of the basic structure or framework of the Constitution, the power of amendment is plenary and includes within itself the power to amend the various articles of the Constitution, including those relating to fundamental rights as well as those which may be said to relate to essential features. No part of a fundamental right can claim immunity from amendatory process by

[~Line 26159]

being described as the essence or core of that right. The power of amendment would also include within itself the power to add, alter or repeal the various articles.
(viii) Right to property does not pertain to basic structure or framework of the Constitution.
(ix) There are no implied or inherent limitations on the power of amendment apart from those which inhere and are implicit in the word "amendment". The said power can also be not restricted by reference to

[~Line 26166]

"amendment". The said power can also be not restricted by reference to natural or human rights. Such rights in order to be enforceable in a court of law must become a part of the statute or the Constitution.

(x) Apart from the part of the Preamble which relates to the basic structure or framework of the Constitution, the Preamble does not restrict the power of amendment.

(xi) The Constitution (Twentyfourth Amendment) Act does not suffer from any infirmity and as such is valid.

[~Line 26210]

really for that object. The exclusion by Legislature, including a State Legislature, of even that limited judicial review strikes at the basic structure of the Constitution. The second part of Article 31C goes beyond the permissible limit of what constitutes amendment under Article 368. The second part of Article 31C can be severed from the remaining part of Article 31C and its invalidity would not

[~Line 26354]

1615. Mr. Palkhivala for the petitioner contended that the word "amendment" in the article could only mean a change with a view to make improvement; that in the context, the term connoted only power to make such changes as were consistent with the nature and purpose of the Constitution, that the basic structure and essential features of the Constitution cannot be changed by amendment, and that the assumption made by these judges that the word "amendment" in the article was wide enough to make any change by way of alteration, addition or repeal of any of the provisions of the Constitution was unwarranted. He said that the article was silent as regards the subject matter in respect of

[~Line 26387]

1619. In the National Prohibition Cases Rhode Island v. Palmer 253 U.S. 350, it was argued before the United States Supreme Court that an amendment under Article V of the United States Constitution must be confined in its scope to an alteration or improvement of that which is already contained in the Constitution and cannot change its basic features but this argument was overruled.

1620. In Rvan's Case The State (At the Prosecution of Jeremiah Ryan and Ors. v. Captain Michael Lennon and Ors. (1935) Irish Reports 173 the Supreme Court of Ireland held by a majority that the word "amendment" occurring in Article 50 of the Irish Constitution was

[~Line 27191]

1664. Mr. Palkhivala contended that even if the word "amendment" in Article 368 before

it was amended is given its widest meaning and the word "law" in Article 13(2) is assumed not to include an amendment of the Constitution there were and are certain inherent and implied limitations upon the power of amendment flowing from three basic features which must be present in the Constitution of every republic. According to counsel, these limitations flow from the fact that the ultimate legal sovereignty resides in the people; that Parliament is a creature of the Constitution and not a constituent body and that the power to alter or destroy the essential features of the Constitution belongs only to the

[~Line 27200]
alter or destroy the essential features of the Constitution, it would cease to be a creature of the Constitution and would become its master; that no constituted body like the Amending Body can radically change the Constitution in such a way as to damage or destroy the basic Constitutional structure, as the basic structure was decided upon by the people, in the exercise of their constituent revolutionary power. Counsel also argued that it is Constitutionally impermissible for one constituent assembly to create a second perpetual constituent assembly above the nation with power to alter its essential features and that Fundamental Rights constitute an essential feature of the Constitution.

[~Line 27275]
1667. Let me, however, indulge in the legal fiction and assume, as the preamble has done, that it was the people who framed the Constitution. What follows? Could it be said that, after the Constitution was framed, the people still retain and can exercise their sovereign constituent power to amend or modify the basic structure or the essential features of the Constitution by virtue of their legal sovereignty?
1668. According to Austin, a person or body is said to have legal sovereignty, when he or it has unlimited law-making power and that there is no person or body superior to him or it. Perhaps, it would be correct to say that the possession of unlimited law-making power

[~Line 27356]
unmake the Constitution only by a method not sanctioned by the juridical order, namely, revolution, it is difficult to agree with the proposition of counsel that the legal sovereignty under the Constitution resides in the people, or, that as ultimate legal sovereign the people can Constitutionally change the basic structure of the Constitution

even when the Constitution provides for a specific mechanism for its amendment.
In the
last, analysis, perhaps, it is right to say that if sovereignty is said to exist
in any sense
at
all, it must exist in the Amending Body, for, as Willoughby has said : "In all
those cases

[~Line 27461]
Constitution? It is no doubt true that some German thinkers, by way of protest
against
indiscriminate use of the amending power under the Weimar Constitution of
Germany,
asserted that the power of amendment is confined to alteration within the
Constitutional
text and that it cannot be used to change the basic structure of the
Constitution. But, as I

[~Line 27557]

amending power in such a way as to change the locus of the power to amend from the Amending Body as constituted to any other body including the people. The result is that ex-hypothesi, under Article 368 there was, or is, no power to amend the Fundamental Rights and the other essential or basic features in such a way as to destroy or damage their essence or core. Nor can the article be amended in such a way as to invest the people-the legal sovereign according to counsel for the petitioner-with power to do it. This seems to me to be an impossible position. 1680. Counsel for the petitioner submitted that the preamble to the Constitution would

[~Line 27567]

sovereign democratic republic with justice, social, economic and political, liberty of thought, belief and expression, equality of status and opportunity and fraternity as its fulcrums and that no succeeding generation can amend the provisions of the Constitution in such a way as to radically alter or modify the basic features of that form of government or the great objectives of the people in establishing the Constitution. Counsel said that the preamble cannot be amended as preamble is not a part of the Constitution, and so, no amendment can be made in any provision of the Constitution which would destroy or
